



May 10, 2024

Chief, Foreign Investment Review Section ("FIRS")
Deputy Chief, Compliance and Enforcement (FIRS)
On Behalf of the Assistant Attorney General for National Security
U.S. Department of Justice
National Security Division
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Washington, DC 20530
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Subject: Applications and Petition by Truphone, Inc.; TP Global Operations Limited; and TP US Operations, Inc. Pursuant to 47 U.S.C. §§ 214 and 310(b)(4), as amended, and 47 C.F.R. §§ 63.24 and 1.5000(a)(1) (TT 23-045 to -047); FCC File Nos. ITC-T/C-20230227-00022; ISP-PDR-20230223-00002; and IA Docket No. 23-344.

Dear Sir/Madam:

This Letter of Agreement ("LOA" or "Agreement") sets forth the commitments that Truphone, Inc. ("TI") and its wholly owned subsidiaries, SmartCall, LLC and iSmart Mobile, LLC (collectively, "Truphone"), and TP Global Operations Limited, including its U.S. subsidiary TP US Operations (collectively, "TP Global"), (together with Truphone, "the Companies,"), make to the U.S. Department of Justice ("USDOJ"), including the Federal Bureau of Investigation ("FBI"), to address national security and law enforcement risks arising from the above-referenced applications and petition to the Federal Communications Commission ("FCC").

In these applications and petition, the Companies are seeking FCC consent for: (1) the transfer of control of Truphone (including TI, the holder of an international Section 214 authorization) from the U.K. Administrators of Truphone Limited (a U.K. parent company of TI), to TP Global, pursuant to Section 214 of the Communications Act of Communications Act of 1934, as amended (the "Act"), and Section 63.24 of the FCC's rules; and (2) the foreign ownership of SmartCall, LLC, the controlling U.S. parent of iSmart Mobile LLC, a common carrier wireless licensee, to exceed the 25% foreign ownership benchmarks specified in Section 310(b)(4) of the Act, and to permit up to 100% aggregate equity and voting foreign interest in SmartCall overall, pursuant to the Act and Section 1.5000(a)(1) of the FCC's rules.¹

The Companies certify as true and correct, under penalties outlined in 18 U.S.C. § 1001, all statements it or its representatives have made to USDOJ, the Department of Homeland Security, the Department of Defense, and the FCC in the course of the review of the above-

¹ FCC File Nos. ITC-T/C-20230227-00022; ISP-PDR-20230223-00002; and IA Docket No. 23-344.



referenced applications and petition that was conducted pursuant to Executive Order 13913.² The Companies hereby adopt those statements as the basis for this LOA.

Further, as to TI, this LOA supersedes in its entirety the letter of August 22, 2012 from TI and Truphone Limited to USDOJ. TI's and Truphone Limited's compliance with the August 22, 2012 letter served as a condition on TI's Section 214 authorization until the current date and was related to prior FCC applications.³

Definitions

1. For purposes of this LOA, the following definitions apply:
 - a. "Access" means: (1) to enter a location; or (2) to obtain, read, copy, edit, divert, release, affect, alter the state of, or otherwise view data or systems in any form, including through information technology ("IT") systems, cloud computing platforms, networks, security systems, and equipment (software and hardware). For the avoidance of doubt, Access shall be construed broadly to include rather than exclude considered conduct.
 - b. "Call Detail Record" ("CDR") means the data records or call log records that contain information about each call made by a user and processed by a switch, call manager, or call server.
 - c. "Customer Proprietary Network Information" ("CPNI") means as set forth in 47 U.S.C. § 222(h)(1).
 - d. "Cybersecurity Incident Response Plan" means a plan or processes put in place to develop and implement the appropriate activities to take action regarding a detected cybersecurity event that has been determined to have an impact on the organization prompting the need for response and recovery.
 - e. "Date of FCC Approval" means the date on which the FCC releases a public notice granting the FCC applications and petition. If the FCC releases public notices granting the FCC applications and petition on multiple dates, the latest such date will be the "Date of FCC Approval."
 - f. "Domestic Communications" ("DC") means:
 - (i) Wire Communications or Electronic Communications (whether stored or not), as defined by 18 U.S.C. § 2510, from one location within the United States, including its territories, to another location within the United States; or

² 85 Fed. Reg. 19643 (Apr. 8, 2020).

³ FCC File Nos. ITC-T/C-20111107-00349; ISP-PDR-20111020-00011.



- (ii) The U.S. portion of a Wire Communication or Electronic Communication (whether stored or not) that originates or terminates in the United States or its territories.

g. “Domestic Communications Infrastructure” (“DCI”) means any Truphone system that supports any communications originating or terminating in the United States, including its territories, including any transmission, switching, bridging, and routing equipment, and any associated software (with the exception of commercial-off-the-shelf (“COTS”) software used for common business functions, *e.g.*, Microsoft Office) used by, or on behalf of, Truphone to provide, process, direct, control, supervise, or manage DC, but would not include the systems of entities for which Truphone has a contracted arrangement for interconnection, peering, roaming, long-distance, or wholesale network Access.

h. “Electronic Surveillance” means:

- (i) The interception of wire, oral, or electronic communications as set forth in 18 U.S.C. §§ 2510(1), (2), (4), and (12), respectively, and electronic surveillance as set forth in 50 U.S.C. § 1801(f);
- (ii) Access to stored wire or electronic communications, as referred to in 18 U.S.C. § 2701 *et seq.*;
- (iii) Acquisition of dialing, routing, addressing, or signaling information through pen register or trap and trace devices or other devices or features capable of acquiring such information pursuant to law as set forth in 18 U.S.C. § 3121 *et seq.* and 50 U.S.C. § 1841 *et seq.*;
- (iv) Acquisition of location-related information concerning a subscriber or facility;
- (v) Preservation of any of the above information pursuant to 18 U.S.C. § 2703(f); and
- (vi) Access to or acquisition, interception, or preservation of, wire, oral, or electronic communications or information as described in (i) through (v) above and comparable state laws.

i. “Foreign” means non-United States, or its territories.

j. “Foreign Person with Access” means any non-U.S. citizen (including management, owners, employees, contractors, Service Provider employees, Principal Equipment provider employees, other third-party employees, or any other natural person) who has Access to: (1) U.S. Records; (2) DCI (to include, but not be limited to, Principal Equipment, network management system(s), logging/auditing systems, fault management systems, and network interfaces that allow read or write Access to the management,



production, and/or operational networks); (3) physical facilities under the Companies' control; (4) Lawful U.S. Process; or (5) DC. For the avoidance of doubt, this category includes the subcategory of "Foreign Persons with Privileged Access."

k. "Foreign Person with Privileged Access" means any Foreign Person with Access to the following: (1) Sensitive U.S. Records, to include: Sensitive Personal Data, social security numbers, financial account data (*e.g.*, bank account numbers, credit card numbers), place of birth, health data, biometric data, and geolocation data; (2) DCI, if the Access is read/write Access; (3) Lawful U.S. Process; or (4) DC.

l. "Geolocation Data" means any information Truphone collects from its customers regarding a customer's location or the customer's device location.

m. "Government" means any government, or governmental, administrative, or regulatory entity, authority, commission, board, agency, instrumentality, bureau, or political subdivision, and any court, tribunal, or judicial or arbitral body.

n. "Internet Protocol Detail Record" ("IPDR") means information about internet protocol-based usage and other activities that can be used by operation support systems ("OSS") and business support systems ("BSS") by recording data statistics that provide network insight on capacity, subscriber usage, and proactive network maintenance.

o. "Lawful U.S. Process" means U.S. federal, state, or local court orders, subpoenas, warrants, processes, directives, certificates, or authorizations, and other orders, legal process, statutory authorizations, and certifications for Electronic Surveillance, physical search and seizure, production of tangible things, or Access to or disclosure of DC, call-associated data, transactional data, Subscriber Information, or associated records.

p. "Managed Network Service Provider" ("MNSP") means any third party that has Access to Principal Equipment for the purpose of:

- (i) network operation; provisioning of Internet and telecommunications services; routine, corrective, and preventative maintenance, including switching, routing, and testing; network and service monitoring; network performance, optimization, and reporting; network audits, provisioning, creation and implementation of modifications or upgrades; or
- (ii) provision of DC or operation of DCI, including customer support; OSS; BSS; Network Operations Centers (as defined below); information technology; cloud operations/services; 5G (Software Defined Networking, Network Functions Virtualization, Applications); and data center services and operations.



q. “Network Operations Center” (“NOC”) means any locations and facilities performing network management, monitoring, accumulating accounting and usage data, maintenance, user support, or other operational functions for DC.

r. “Personally Identifiable Information” (“PII”) means any information that uniquely identifies and correlates to a natural person or can be used to distinguish or trace a natural person’s identity, alone, including name, social security number, or biometric records, or when combined with other personal or identifying information that is linked or linkable to a specific individual, including date and place of birth, or parent’s surname.

s. “Principal Equipment” or “PE” means all telecommunications and information network equipment (*e.g.*, hardware, software, platforms, operating systems, applications, protocols) that supports core telecommunications or information services, functions, or operations. For the avoidance of doubt, “Principal Equipment” includes lawful intercept gateways.

t. “Security” means a condition that results from the establishment and maintenance of protective measures that enable an organization to perform its mission or critical functions despite risks posed by threats to its use of systems. Protective measures may involve a combination of deterrence, avoidance, prevention, detection, recovery, and correction that should form part of the organization’s risk management approach.

u. “Security Incident” means:

- (i) Any known or suspected breach of this LOA, including a violation of any approved plan, policy, or procedure under this LOA;
- (ii) Any unauthorized Access to, or disclosure of, U.S. Records;
- (iii) Any unauthorized Access to, or disclosure of, information obtained from or relating to Government entities; or
- (iv) Any one or more of the following which affect the Companies’ computer network(s) or associated information systems involved in Truphone’s U.S. services:
 - A. Unauthorized disruptions to a service or denial of a service;
 - B. Unauthorized processing or storage of data;
 - C. Unauthorized modifications to system hardware, firmware, or software, including the identification of vulnerabilities introduced through a cyber supply chain compromise;
 - D. Unplanned incidents that cause activation of the Companies’ Cybersecurity Incident Response Plan(s), as related to Truphone;



E. Attempts from unauthorized sources to Access systems or data if these attempts to Access systems or data may materially affect the Companies' ability to comply with the terms of this LOA; or

F. An unauthorized occurrence that (1) actually or imminently jeopardizes the integrity, confidentiality, or availability of information or an information system; or (2) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.

v. "Sensitive Personal Data" means sensitive personal data as set forth in 31 C.F.R. § 800.241.

w. "Subscriber Information" means any information of the type referred to and accessible subject to the procedures set forth in 18 U.S.C. § 2703(c)(2) or 18 U.S.C. § 2709, as amended or superseded.

x. "Service Provider" means any entity (to include but not be limited to any parents, subsidiaries, and affiliates of Truphone, as well as contractors, subcontractors, or Government agencies) that provides any service that could result in the entity having Access to DCI, DC, Lawful U.S. Process, PE, or U.S. Records. Such services include, but are not limited to: MNSP services; NOC(s) services; network maintenance management or monitoring services; billing or customer support services; network security services; assistance in fulfilling the obligations of this LOA; and providing, installing, operating, updating, repairing, managing, monitoring, or maintaining PE.

y. "U.S. Records" means Truphone's customer billing records; Subscriber Information; PII; Sensitive Personal Data; CDRs; IPDRs; CPNI; Geolocation Data; the existence, contents, responses to, and results of Lawful U.S. Process, including the Lawful U.S. Process demands themselves; and any other information used, processed, or maintained in the ordinary course of business related to the services that Truphone offers within the United States, including information subject to disclosure to a U.S. federal or state governmental entity under the procedures set forth in 18 U.S.C. §§ 2703(c)-(d) and 18 U.S.C. § 2709.

Law Enforcement Point of Contact

2. Truphone agrees to designate and maintain a U.S. law enforcement point of contact ("LEPOC") in the United States who will be subject to prior approval by USDOJ, including the FBI. The LEPOC shall be a U.S. citizen residing in the United States or its territories, unless USDOJ otherwise agrees in writing. The LEPOC must be approved by the FBI to receive service of Lawful U.S. Process including for U.S. Records, and, where possible, to assist and support lawful requests for Electronic Surveillance or production of U.S. Records by U.S. federal, state, and local law enforcement agencies.



3. Truphone agrees to provide the proposed LEPOC's PII to USDOJ, in a format USDOJ will identify, within **15 days** of the Date of FCC Approval. Upon USDOJ request, Truphone agrees to provide the proposed LEPOC's curriculum vitae or similar professional synopsis and/or make the proposed LEPOC available for a pre-appointment interview with USDOJ. USDOJ agrees to object or non-object within **15 days** of receiving the LEPOC's PII or the last of any additional requested information.

4. Truphone agrees to notify USDOJ, including the FBI, in writing at least **30 days** prior to modifying its LEPOC for USDOJ and FBI objection or non-objection. For those cases involving the unexpected firing, resignation, incapacitation, or death of the LEPOC, written notice will be provided within **five days** of such event. Under these circumstances, USDOJ will object or non-object to the replacement LEPOC within **30 days** of notification.

Security Officer

5. Truphone agrees to designate and maintain a security officer ("Security Officer") who is a non-dual U.S. citizen residing in the United States, unless USDOJ otherwise agrees in writing. Truphone may also designate and maintain an alternate security officer ("Alternate Security Officer") to fulfill the responsibilities of the Security Officer in the event of the Security Officer's unavailability. The proposed Security Officer (and any Alternate Security Officer) must be eligible to obtain and maintain a "Secret" level or higher U.S. Government security clearance immediately upon appointment. The Security Officer will be responsible for implementing the terms of the LOA, ensuring company employees are appropriately trained in LOA compliance, and acting as a liaison to USDOJ regarding compliance with this LOA and to address any national security or law enforcement issues arising during Truphone's due course of business. The Security Officer and any Alternate Security Officer will have the appropriate senior-level corporate authority, skills, resources, and access to business information within the Companies to perform their duties under this LOA.

6. The Security Officer will be available 24 hours per day, seven days per week, to respond to and address any national security or law enforcement concerns that USDOJ may raise with respect to Truphone or its operations, except that if Truphone designates an Alternate Security Officer, then in the event that the Security Officer is unavailable, the Alternate Security Officer will be available to respond to and address such concerns. Upon USDOJ request, the Security Officer or, as applicable, the Alternate Security Officer, will be available in person within the United States or its territories within **72 hours**, at a date and location, including in a classified setting, as deemed necessary by USDOJ.

7. Truphone agrees to timely nominate its Security Officer and any Alternate Security Officer. Specifically:

- a. Truphone agrees to nominate a proposed candidate for Security Officer to USDOJ within **15 days** of the Date of FCC Approval. USDOJ agrees to object or non-object within **15 days** of receiving the Security Officer's PII or the last of any additional requested information.



- b. Truphone agrees to notify USDOJ, including FBI, in writing at least **30 days** prior to modifying its Security Officer for USDOJ objection or non-objection. For those cases involving the unexpected firing, resignation, incapacitation, or death of the Security Officer, written notice will be provided within **five days** of such event. Under these circumstances, USDOJ will object or non-object to the replacement Security Officer within **30 days** of notification.
- c. In the event that Truphone decides to designate an Alternate Security Officer, Truphone will nominate any proposed candidate for Alternate Security Officer at least **30 days** prior to the date on which Truphone proposes to designate that individual to act as the Alternate Security Officer. USDOJ will object or non-object to the Alternate Security Officer within **30 days** of notification.
- d. Truphone further agrees to not maintain a vacancy or suspension of the Security Officer position for a period of more than **60 days**.
- e. For each nomination for a Security Officer (or Alternate Security Officer), Truphone will provide the proposed nominee's PII to USDOJ, in a format USDOJ will identify. Truphone further agrees to include with the nomination a plan for how the proposed Security Officer will ensure Truphone employees are appropriately trained in compliance with this LOA. Upon USDOJ request, Truphone agrees to provide the proposed nominee's curriculum vitae or similar professional synopsis and/or make the proposed Security Officer (or Alternate Security Officer) available for a pre-appointment interview with USDOJ. Truphone agrees to address concerns raised by USDOJ regarding the selection and identity of the Security Officer and any Alternate Security Officer.

Personnel Screening

8. The Companies agree to implement, either directly or through a vendor, a process to screen existing or newly hired personnel who have Access to DC, DCI, Lawful U.S. Process, or U.S. Records, as related to Truphone's U.S. services (*e.g.*, Truphone's personnel, personnel of Truphone's affiliates, PE vendor personnel, Service Provider personnel, or TP Global personnel, if they will have such Access). The personnel screening process shall include background investigations, public criminal records checks, or other analogous means to ascertain a person's trustworthiness. The Companies further agree to provide USDOJ with a written description of this personnel-screening process no later than **60 days** after the Date of FCC Approval. USDOJ will object or non-object within **60 days** of receiving such description.

9. The Companies agree to notify USDOJ of all Foreign Persons with Access (including, but not limited to, Foreign employees, Foreign employees of affiliates, and Foreign employees of Service Providers). With respect to any Foreign Persons with Access as of the Date of FCC Approval, the Companies will provide the following within **30 days** of the Date of FCC Approval:

- a. The number of Foreign Persons with Access and a description of all categories of Access, as provided in Paragraphs 1(j) and 1(k);



- b. Notification if any of the Foreign Persons with Access qualify as Foreign Persons with Privileged Access. If any of the Foreign Persons with Access qualify as Foreign Persons with Privileged Access, the Companies will also provide the PII for each Foreign Person with Privileged Access to USDOJ in a format USDOJ will identify;
- c. The country(ies) from which the Foreign Persons with Access have Access; and
- d. The citizenship(s) of the Foreign Persons with Access.

Following the initial submission of information about Foreign Persons with Access, the Companies will provide updated information as described in Paragraph 9(a) through (d) annually, with the Annual Report described in Paragraph 43, or otherwise upon USDOJ's request.

The Companies agree to notify USDOJ of additional Foreign Persons with Privileged Access no less than **30 days** prior to the date by which the Companies are seeking such Access to be granted. Upon USDOJ's request, the Companies further agree to provide PII to USDOJ, in a format DOJ will identify, for Foreign Persons with Access who do not qualify as Foreign Persons with Privileged Access. USDOJ will object or non-object to Foreign Persons with Access for which PII is provided within **30 days** of receiving notice. For the avoidance of doubt, the Companies are not required to submit a Foreign Person with Access's PII to the extent that information was previously submitted and remains unchanged, unless requested by USDOJ.

Lawful U.S. Process and Requests for Information

10. Truphone agrees to comply with all applicable lawful interception statutes, regulations, and requirements, as well as comply with all court orders and other Lawful U.S. Process for lawfully authorized Electronic Surveillance. Truphone further agrees to certify to USDOJ its compliance with the Communications Assistance for Law Enforcement Act ("CALEA"), 47 U.S.C. §§ 1001-10, and its implementing regulations, within **30 days** from the Date of FCC Approval.

11. Truphone agrees to provide notice to USDOJ of any material modification to its lawful intercept capabilities **30 days** in advance of such modification. For the avoidance of doubt, changes regarding Truphone's lawful intercept gateway, including a change of location or a change of service provider providing or supporting the lawful intercept gateway, shall be considered a material modification to Truphone's lawful intercept capabilities. As required by Paragraphs 31 and 35, Truphone agrees to submit any new Principal Equipment or Service Providers related to any change to the lawful intercept gateway for USDOJ objection or non-objection. Truphone will re-certify its compliance with CALEA no more than **60 days** following its notice to USDOJ of any material new facilities, services, or capabilities.

12. Upon receipt of any Lawful U.S. Process, Truphone agrees to place any and all information responsive to the Lawful U.S. Process within the territorial boundaries of the United States and otherwise provide information to the requesting officials, in a manner and time



consistent with the Lawful U.S. Process. Truphone agrees that its designated LEPOC will have Access to all U.S. Records necessary to facilitate responses to request for Lawful U.S. Process.

13. Truphone agrees not to provide, or otherwise allow the disclosure of, or Access to, U.S. Records, DCI, or DC, to any Foreign Government, Foreign entity, or Foreign person (to the extent such Access would cause such Foreign person to be a Foreign Person With Privileged Access), without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

14. Truphone agrees not to disclose the receipt of Lawful U.S. Process, or compliance with Lawful U.S. Process, to any Foreign Government, Foreign entity, or Foreign person not authorized under the Lawful U.S. Process, without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

15. Truphone agrees to refer any requests for information or Access described in this Section from a Foreign Government, Foreign entity, or Foreign person, including any legal process from a Foreign Government, to USDOJ as soon as possible, but in no event later than **five days** after such a request, or legal process, is received by, or made known to, Truphone, unless disclosure of the request, or legal process, would be in violation of U.S. law, or in violation of an order of a court of competent jurisdiction in the United States.

16. Truphone agrees to ensure that U.S. Records are not subject to mandatory destruction under any Foreign laws.

Security Measures and Plans

17. The Companies agree to take all appropriate measures to prevent unauthorized Access to U.S. Records, DC, DCI, and Lawful U.S. Process.

18. The Companies agree to take all appropriate measures to prevent any unlawful use or disclosure of information relating to U.S. Records, DC, DCI, and Lawful U.S. Process.

19. The Companies agree to submit to USDOJ, as they apply to Truphone: (1) a Cybersecurity Plan; and (2) a comprehensive System Security Plan ("SSP") (together the "Plans"), each of which shall be guided by the current version of the National Institute of Standards and Technology ("NIST") Cybersecurity Framework, and incorporate applicable controls found in NIST SP 800-53, NIST SP 800-171, or other international information security standards. Such Plans will be consistent with the recommendations of the Cybersecurity and Infrastructure Security Agency's ("CISA") Cross-Sector Cybersecurity Performance Goals (or any subsequent applicable sector specific performance goals). The Companies agree that the Plans will include, among other things, policies relating to information security, supply chain security, cybersecurity incident response (including detailing when incidents are to be reported to the relevant authorities, *e.g.*, CISA and FBI), remote Access, network segmentation, physical security, cybersecurity, third-party contractors, peering and routing security, Service Provider screening and Access, maintenance and retention of system logs, periodic control assessments,



third-party cybersecurity audits, and protection of Lawful U.S. Process, U.S. Records, DCI, and DC.

20. If the Plans are the same as those submitted during the TT 23-045 to -047 review that were originated by TP Global and adopted by Truphone, Truphone will confirm the same to USDOJ and confirm that the policies have been fully implemented for Truphone.

21. The Companies will provide copies of the Plans to USDOJ, along with a confirmation, if applicable, that the Plans have been implemented at Truphone, within **60 days** of the Date of FCC Approval. Thereafter, the Companies will provide copies of the Plans annually in accordance with Paragraph 43(k), or otherwise upon USDOJ's request. The Companies agree that the Plans will be updated when appropriate to conform with evolving information security standards, and that the Companies will make additional modifications to these Plans, if requested by USDOJ, and work with USDOJ to implement such modifications.

22. Truphone further agrees to include Truphone's plans regarding new contracts or amendments to existing contracts with Service Providers requiring them to agree to the conditions set forth in Paragraph 37 of this LOA.

23. The Companies further agree to take timely and appropriate remedial measures, as recommended by the U.S.-Computer Emergency Readiness Team/CISA, an Information Sharing and Analysis Center ("ISAC"), or similar U.S. authority, to respond to and recover from any cyber or supply chain incident and mitigate vulnerabilities.

U.S. Records and DC Storage

24. The Companies agree to notify USDOJ at least **30 days** prior to changing the location for storage of U.S. Records or DC. USDOJ will object or non-object within **60 days** of receipt of the Companies' submission. Such notice shall include:

- a. A description of the type of information to be stored in the new location;
- b. The custodian of the information (even if such custodian is Truphone or TP Global);
- c. The location where the information is to be stored;
- d. Updated SSP and Cybersecurity Plans detailing the physical/logical protections at the new location; and
- e. The factors considered in deciding to store that information in the new location.

Countries from which U.S. Records, Lawful U.S. Process, DC, and DCI are Accessed

25. Within **30 days** of the Date of FCC Approval, the Companies will provide a list of



countries from which U.S. Records, Lawful U.S. Process, DC, and the DCI are Accessed (by any natural person or entity, including but not limited to personnel of the Companies and Service Provider personnel). USDOJ will object or non-object within **30 days** of receiving such notice. The Companies will notify USDOJ **30 days** in advance of permitting any Access to U.S. Records, Lawful U.S. Process, DC, and the DCI from a new country from which Access was not previously approved. USDOJ will object or non-object within **30 days** of receiving such notice.

Reporting Incidents and Breaches

26. The Companies agree to report to USDOJ promptly, and in any event no later than **48 hours**, after they learn of information that reasonably indicates a known or suspected:

- a. Security Incident;
- b. Unauthorized Access to, or disclosure of, any information relating to services provided by Truphone, or referring or relating in any way to Truphone's customers in the United States or its territories;
- c. Unauthorized Access to, or disclosure of, DC in violation of federal, state, or local law; or
- d. Material breach of the commitments made in this LOA.

27. Truphone agrees to require any Service Provider to disclose to Truphone any data breach of any U.S. Records or DC, or any loss of U.S. Records or DC, whether from a data breach, or other cause, within **48 hours** of the Service Provider discovering the breach or loss. Truphone agrees further to require any Service Provider to disclose to Truphone, within **48 hours** of discovery, any critical exposure, threats, and vulnerabilities associated with the products or services provided to Truphone that are the result of the insertion of counterfeits, unauthorized production, tampering, theft, or insertion of malicious software and hardware into such products or services or into the Service Providers' supply chain.

28. The Companies agree to notify USDOJ, including the points of contact ("POCs") listed in this LOA, in writing of any Security Incident or breach described in this LOA. Such notification shall take place no later than **48 hours** after the Companies have knowledge, or are informed by a Service Provider, that the incident, intrusion, or breach has taken or is taking place, or sooner when required by statute or regulations. The Companies will share with USDOJ the results of any internal or third-party investigation or review of the incident, if any, including, but not limited to, any steps taken to mitigate the damage and prevent further Security Incidents or breaches.

29. The Companies agree to notify the FBI and U.S. Secret Service as provided in 47 C.F.R. § 64.2011 within **seven business days** after a reasonable determination that a person without authorization, or in exceeding his or her authorization, has gained Access to, used, or disclosed CPNI, whether through Truphone's networks or that of a third party used by Truphone, and shall electronically report the matter to the central reporting facility through the following portal: <https://www.cpnireporting.gov>.



Principal Equipment

30. Truphone agrees to provide USDOJ an initial Principal Equipment list within **30 days** of the Date of FCC Approval. USDOJ will object or non-object to the Principal Equipment included on the list within **60 days** of receipt.

31. Truphone agrees to notify USDOJ in writing at least **30 days** prior to introducing any new Principal Equipment of a different make than the Principal Equipment identified and approved pursuant to Paragraph 30, or subsequently approved by USDOJ pursuant to this paragraph, or modifying any of its Principal Equipment. USDOJ will object or non-object to such new Principal Equipment or modification to the Principal Equipment within **30 days** of receipt of notice.

32. The initial Principal Equipment list submitted pursuant to Paragraph 30 and any subsequent notices submitted pursuant to Paragraph 31 shall include the following information, in a format that USDOJ will identify:

a. PE Manufacturer Information:

- (i) Name;
- (ii) Business Address;
- (iii) EIN, if available;
- (iv) Webpage Address URL, if available.

b. Equipment Information:

- (i) Make;
- (ii) Model/Version Number;
- (iii) Function;
- (iv) Access to U.S. Records, Lawful U.S. Process, DC, and DCI;
- (v) Country where located;
- (vi) Owner (if rented).

c. Notice if the equipment includes logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software that was designed, produced, or maintained by suppliers owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary (as designated by the Secretary of Commerce under Executive Order 13873 or any U.S. federal agency given subsequent comparable authority);

d. Notice if the equipment includes logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software from a provider listed on the FCC's Covered List (*see* FCC, *List of Equipment and Services Covered by Section 2 of the Secure Networks Act*, <https://www.fcc.gov/supplychain/coveredlist>), the Commerce Department's



Entity List, or subject to a removal or exclusion order issued by the Secretary of Homeland Security, the Secretary of Defense, or the Director of National Intelligence pursuant to the SECURE Technology Act, 41 U.S. Code § 1321 *et seq.*

33. Truphone agrees to provide USDOJ with updated network diagrams and topology maps showing all facilities, devices, interfaces, Points of Presence (“PoPs”), exchange points, and NOCs within **60 days** from the Date of FCC Approval.

Service Providers

34. Truphone agrees to provide USDOJ with a list of Truphone’s Service Providers within **30 days** of the Date of FCC Approval. USDOJ will object or non-object to the Service Providers contained in the initial list within **60 days** of receipt.

35. Truphone agrees to notify USDOJ in writing no less than **30 days** prior to the use of any new Service Provider. USDOJ will object or non-object to any new Service Provider within **30 days** of receiving notice.

36. Truphone agrees to provide at least **30 days’** advance notice prior to changing the service offerings or support from a previously-identified Service Provider or vendor (*i.e.*, where a previously-identified Service Provider or vendor will be offering support in a previously unidentified way). USDOJ will object or non-object to the proposed change in service offerings or support within **30 days** of receipt of notice.

37. The initial Service Provider list submitted pursuant to Paragraph 34 and any subsequent notices submitted pursuant to Paragraph 35 shall include the following information for each Service Provider, in a format USDOJ will identify:

- a. Company Name;
- b. Business Address;
- c. EIN, if available;
- d. Webpage Address URL, if available;
- e. Country of Incorporation;
- f. Principal Place of Business;
- g. Description of Service Provided;
- h. Information and/or Systems Access (*e.g.*, DCI, DC, Lawful U.S. Process, or U.S. Records);
- i. Type of Access (Read or Read/Write);
- j. The number of Service Provider Foreign Persons with Access to DCI, DC, Lawful U.S. Process, or U.S. Records and each country from which they have or will have Access, and PII for any Foreign Persons with Access that qualify as Foreign Persons with Privileged Access per Paragraph 9;
- k. Any foreign government ownership, control, or affiliations;
- l. Confirmation that the Service Provider is contractually required, or information sufficient to demonstrate Truphone’s best efforts to achieve the adoption of contractual requirements for the Service Provider, to do the following:



- (i) Screen Employees with Access (pursuant to Paragraph 9 of this LOA);
- (ii) Report Security Incidents to Truphone (pursuant to Paragraph 27 of this LOA);
- (iii) Inform Truphone of the countries from which Service Provider personnel have Access, and inform Truphone more than **30 days** in advance of a change in the countries from which Service Provider personnel will have Access;
- (iv) Ensure that Service Provider Foreign Persons with Privileged Access are reported to USDOJ pursuant to Paragraph 9 of this LOA; and
- (v) Conform to Truphone's security policies regarding Service Provider Access.

Upon USDOJ request, the Companies will provide additional information about the Service Provider.

Network Operations Centers

38. The Companies agrees to notify USDOJ in writing at least **60 days** prior to changing the location or operator of the NOC(s) supporting Truphone's U.S. services. USDOJ will object or non-object to any new NOC location or operator within **60 days** of receiving notice of the proposed change. The Companies will provide the address, owner (even if the Companies), Principal Equipment, and MNSP(s) (as well as any new Service Providers) of the new NOC(s) with the notification, as well as appropriately updated SSP and Cybersecurity Plans.

Change in Ownership and Service Portfolio

39. The Companies agree to provide USDOJ notice of any changes to the Companies' business(es), including but not limited to corporate structure changes, ultimate beneficial ownership changes,⁴ corporate name changes, business model changes, corporate headquarter location changes, or business operation location changes no less than **30 days** in advance of such change.

40. The Companies agree to provide USDOJ notice within **30 days** of initiating any bankruptcy proceeding or any other legal proceeding undertaken for the purpose of liquidating, reorganizing, refinancing, or otherwise seeking relief from all or some of the Companies' debts.

41. Truphone agrees to provide USDOJ notice of any material change to its current portfolio of service offerings, including offering other services beyond its current service portfolio, no less than **30 days** in advance of such change. USDOJ will object or non-object within **30 days** of receiving such notice.

⁴ For the purposes of this paragraph, "ownership changes" includes, but is not limited to, any new investment by, or change in existing rights of, any ultimate beneficial owner of the Companies that results in such beneficial owner obtaining a right to: (a) manage or control the activities of Truphone; and/or (b) gain Access to Truphone's DC, DCI, U.S. Lawful Process, or U.S. Records. With respect to any calendar month during which any non-U.S. ultimate beneficial owner of the Companies has acquired a direct or indirect equity interest in Truphone of five percent or more, the Companies shall provide an updated list of all non-U.S. ultimate beneficial owners holding or controlling a direct or indirect equity stake (voting or non-voting) of five percent or more in Truphone no later than the end of the following calendar month.



Site Visits

42. The Companies agree to permit USDOJ's requests for site visits and information, approve all requests to conduct on-site interviews of the Companies' employees, and provide all documents necessary to verify the implementation of and compliance with the terms of this LOA, or to identify grounds for modification of this LOA.

Annual Report

43. The Companies agree to provide an annual report to USDOJ regarding their compliance with this LOA, to include:

- a. If the Companies submitted no notifications to USDOJ pursuant to this LOA during the preceding year, a certification that there were no developments that the Companies were required to report under the LOA during the year;
- b. A description of the Companies' handling of U.S. Records, DC, and Lawful U.S. Process (*i.e.*, whether handled properly and in accordance with the assurances contained herein, including compliance with CALEA and other U.S. lawful interception statutes, regulations, and requirements) as related to Truphone, including a current production of information about all Foreign Persons with Access as described in Paragraph 9(a) (and specific identification to USDOJ of any new Foreign Persons with Access submitted for USDOJ's objection or non-objection with the Annual Report);
- c. A list of all countries from which U.S. Records, DC, Lawful U.S. Process, and the DCI were Accessed in the prior year;
- d. A current Principal Equipment list containing the information described in Paragraph 32, including specific identification to USDOJ of any new Principal Equipment submitted for USDOJ's objection or non-objection with the Annual Report;
- e. A current Service Provider list containing the information described in Paragraph 37, including specific identification to USDOJ of any new Service Providers submitted for USDOJ's objection or non-objection with the Annual Report;
- f. Notice if Truphone has used in the past year, or plans to use in the future, logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software in its DCI, PE, or other systems supporting DC, Lawful U.S. Process, DC, or U.S. Records, that was designed, produced, or maintained by suppliers owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary (as designated by the Secretary of Commerce under Executive Order 13873 or any U.S. federal agency given subsequent comparable authority);



- g. Notice if Truphone has used in the past year, or plans to use in the future, products or services from an entity listed on the FCC's Covered List (*see* FCC, *List of Equipment and Services Covered by Section 2 of the Secure Networks Act*, <https://www.fcc.gov/supplychain/coveredlist>),⁵ the Commerce Department's Entity List, or subject to a removal or exclusion order issued by the Secretary of Homeland Security, the Secretary of Defense, or the Director of National Intelligence pursuant to the SECURE Technology Act, 41 U.S.C. § 1321 *et seq.*;
- h. A description of any LOA compliance trainings conducted in the prior year;
- i. A list of relationships with Foreign-owned telecommunications partners, including any network peering (traffic exchange) or interconnection relationships;
- j. Updated network diagrams and topology maps showing all facilities, devices, interfaces, PoPs, exchange points, and NOCs;
- k. Updated SSP and Cybersecurity Plans and a description of any changes to the Plans during the reporting period;
- l. An updated organizational chart showing all owners with a five percent or greater ownership share in Truphone;
- m. A list of any Security Incidents during the prior year;
- n. A re-identification of any location(s) in which U.S. Records are stored and a description of the types of U.S. Records collected and stored;
- o. A re-identification of the name and contact information of the LEPOC, Security Officer, and Alternate Security Officer(s), if applicable;
- p. A list of all filings or notices to the FCC in the prior year, and a copy of these filings if requested by USDOJ;
- q. A description of the services that Truphone provides in the United States to include: the specific services provided using an FCC license or authorization and other services it provides in the United States that do not require FCC licenses or authorizations. Such a description should also specifically detail any services provided to Government or critical infrastructure customers; and
- r. Notification of any reasonably foreseeable matter that would give rise to an obligation under this LOA.

The annual report will be due one year after the Date of FCC Approval and every year thereafter. The Companies agree to send electronic copies of the annual report and all notices

⁵ *See also* Section 2(a) of the Secure and Trusted Communications Networks Act of 2019, Pub. L. No. 116-124, 133 Stat. 158 (2020) (codified as amended at 47 U.S.C. §§ 1601-09); 47 C.F.R. § 1.50000 *et seq.*



and communications required under this LOA to the following individuals or any other individuals that USDOJ identifies to the Companies in the future:

- Eileen Keenan, USDOJ (at Eileen.Keenan@usdoj.gov),
- Makenzie Skopowski, USDOJ (at Makenzie.Skopowski@usdoj.gov); and
- Tyler Wood, USDOJ (at Compliance.Telecom@usdoj.gov).

Upon USDOJ request, the Companies agree to provide USDOJ with paper copies of any annual report, notices, or communications required under this LOA.

Third-Party Compliance Audit

44. At their sole discretion, but no more frequently than once every calendar year unless the original audit is found by USDOJ to have been unsatisfactory, USDOJ may request that the Companies undergo a neutral third-party compliance audit of LOA compliance (including any plan, policy, or procedure approved under this LOA). In connection with the audit:

- a. Within **60 days** of USDOJ requesting a third-party audit, the Companies will nominate a third-party auditor. Within **60 days** of the nomination, USDOJ will approve or disapprove the nominated third-party auditor. As part of the auditor nomination and approval process, the Companies will disclose information regarding the Companies' and nominated auditor's pre-existing relationship (if any).
- b. The Companies will be solely responsible for any costs associated with any third-party audit carried out pursuant to this Section.
- c. The Companies will ensure the selected third-party auditor submits, within **15 days** of USDOJ non-objection to the auditor and prior to commencing the audit, a methodology and proposed scope of audit, both of which will be subject to USDOJ approval. The statement of work shall allow for direct communication between USDOJ and the third-party auditor, without notice to or participation of the Companies.
- d. The Companies will ensure that the executed engagement agreement with the third-party auditor is provided to USDOJ within **seven days** of execution.
- e. The Companies will ensure that their agreement with the third-party auditor will require the third-party auditor to deliver promptly to USDOJ and the Companies all reports and related information generated or gathered during its review that relate directly to the Companies' compliance with the terms of this LOA and will agree to meet independently with USDOJ upon request. Unless otherwise agreed



to by USDOJ, the Compliance Audit report shall be submitted to USDOJ by the auditor at the same time it is submitted to the Companies.

General Provisions

45. The Companies agree that this LOA is binding upon, and inures to the benefit of, the Companies and their respective successors and assigns. For purposes of this LOA, successors and assigns includes any corporate name changes. The Companies may not assign any obligation under this LOA without the prior written consent of USDOJ.

46. If USDOJ finds that the terms of this LOA are inadequate to resolve any national security or law enforcement risks, the Companies agree to resolve USDOJ's concerns, according deference to USDOJ's views on the need for modification. Rejection of a proposed modification shall not alone be dispositive, but failure to resolve national security or law enforcement concerns may result in a request that the FCC modify, condition, revoke, cancel, terminate, or render null and void any relevant license, permit, or other authorization granted by the FCC to the Companies or their successors-in-interest, or any other appropriate enforcement action required to address the concern.

47. The Companies agree that in the event that the Companies breach the commitments set forth in this LOA, to include conduct contrary to timely USDOJ objection to any notice submitted pursuant to this LOA, a recommendation may be made that the FCC modify, condition, revoke, cancel, enter other declaratory relief, or render null and void any relevant license, permit, or other authorization granted by the FCC to the Companies or their successors-in-interest, in addition to pursuing any other remedy available by law or equity.

48. For purposes of counting days in this LOA, the day of the event that triggers the period is excluded, but every day thereafter is counted, including intermediate Saturdays, Sundays, and legal holidays (meaning federal holidays in the United States). Include the last day of the period, but if the last day is a Saturday, Sunday, or legal holiday, the period continues to run until the end of the next day that is not a Saturday, Sunday, or legal holiday.

49. Any non-objection, consent, or approval provision applicable to USDOJ pursuant to this LOA shall be tolled during a lapse in appropriations or any time when the Federal Government in the greater Washington, D.C. area is closed.

50. The Companies agree to permit disclosure of information submitted to the FCC in confidence pursuant to 47 C.F.R. § 0.442 to federal government departments, agencies, and offices whose principals are listed in Section 3 of Executive Order 13913.

51. The Companies understand that if USDOJ, with non-objection from the Committee for the Assessment of Foreign Participation in the United States Telecommunications Services Sector ("Committee"), finds the national security and law enforcement risks associated with these applications and petition have decreased such that they no longer warrant mitigation, USDOJ may terminate this LOA by notice to the FCC. The Companies further understand that even after such a termination, under Section 6 of Executive Order 13913, the Committee may conduct a license review for additional or new risks to U.S national security and law enforcement



interests at any time. Termination of a mitigation agreement does not relieve the Companies from liability for any breach of this LOA occurring while it was in effect.

52. The Companies understand that, upon execution of this LOA by an authorized representative or attorney, or shortly thereafter, the FCC will be notified that there is no objection to grant of the applications and petition.

For Truphone, Inc.

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Richard Stupansky Jr – President and Director
Truphone, Inc.
May 10, 2024

For SmartCall, LLC

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Richard Stupansky Jr – Member Manager
SmartCall, LLC
May 10, 2024

For iSmart Mobile, LLC

DocuSigned by:

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Richard Stupansky Jr – Member Manager
iSmart Mobile, LLC
May 10, 2024

For TP Global Operations Limited

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Pyrros Koussios – Director
TP Global Operations Limited
May 10, 2024

For TP US Operations Inc

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Pyrros Koussios – Director
TP US Operations Inc
May 10, 2024